Fundamental Rights (Part 2)

Table of Contents

- Significance
- Article (25- 35)
- Limitations

Significance

✓ Fundamental Rights are essential for the holistic development of individuals and protect their civil and political freedoms.

✓ They uphold the **Rule of Law**, ensuring equality before law and protection from arbitrary state actions.

✓ Unlike ordinary rights, Fundamental Rights are constitutionally guaranteed and can only be altered by a constitutional amendment.

✓ They include both **negative rights** (restricting state interference) and **positive rights** (obliging state action).

✓ These rights form the **foundation of a liberal democracy**, ensuring justice, equality, and dignity.

© Copyright

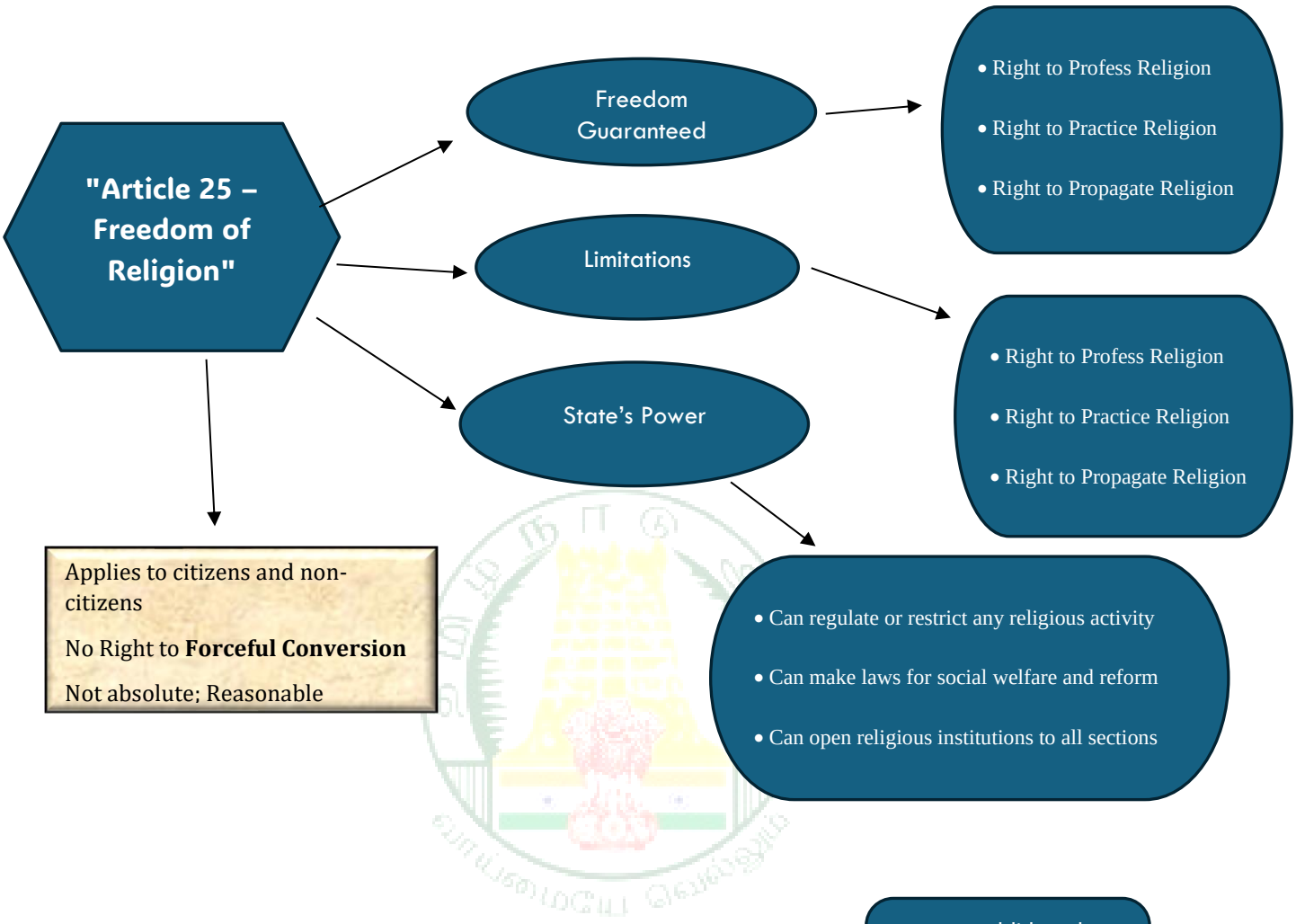
The Department of Employment and Training has prepared the Competitive Exams study material in the form of e-content for the benefit of Competitive Exam aspirants, and it is being uploaded in this Virtual Learning Portal. This e-content study material is the sole property of the Department of Employment and Training. No one (either an individual or an institution) is allowed to copy or reproduce the matter in any form. The trespassers will be prosecuted under the Indian Copyright Act. It is a cost-free service provided to the job seekers who are preparing for the competitive exams.

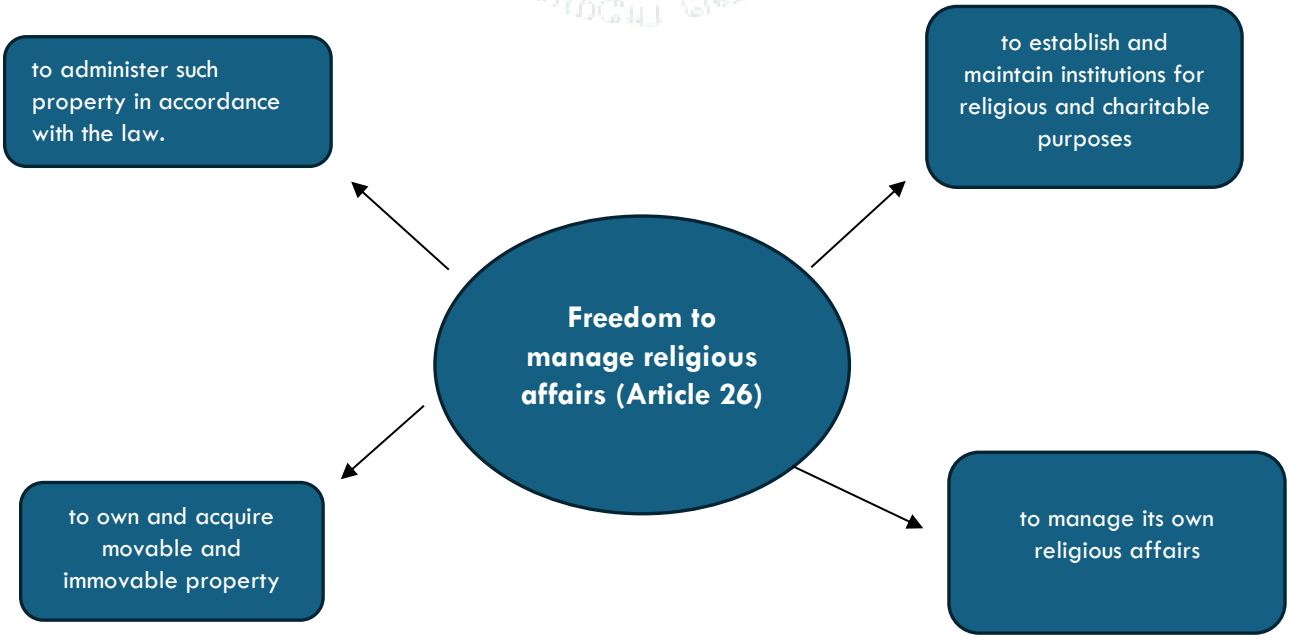
Director,

Department of Employment and Training.

DEPARTMENT OF EMPLOYMENT AND TRAINING
TNPSC GROUP IV – POLITY MINDMAP

Right to Freedom of Religion (Article 25 – 28)





Article 27

- No person can be forced to pay taxes used for promoting or maintaining any particular religion or sect.

Article 28

- Religious instruction is prohibited in state-funded institutions, unless established under a trust mandating it.

Cultural and Educational Rights (Article 29 – 30)

Cultural and Educational Rights

- Article 29 – Protection of Interests of Minorities
- Article 30 – Right of Minorities to Establish Institutions

Types of Writs under Article 32 & Article 226

1. **Habeas Corpus** ***("to have the body of")***
   - Issued to produce a person who is illegally detained.
2. **Mandamus** ***("we command")***
   - Issued to direct a public official/body to perform a public duty.
3. **Prohibition** ***("to forbid")***
   - Issued by a higher court to a lower court to **stop** proceedings beyond its jurisdiction.
4. **Certiorari** ***("to be certified/informed")***
   - Issued to transfer a case from a lower court to a higher court or to quash an order.
5. **Quo Warranto** ***("by what authority")***
   - Checks **illegal occupation of a public office.**

Article 32 – Right to Constitutional Remedies

Provides legal remedy for enforcement of Fundamental Rights.

Allows individuals to directly approach the **Supreme Court** for protection of their rights.

SC can issue writs: **Habeas Corpus**, **Mandamus**, **Prohibition**, **Quo Warranto**, and **Certiorari**.

High Courts have similar powers under **Article 226**.

Parliament can empower other courts to issue writs.

DEPARTMENT OF EMPLOYMENT AND TRAINING
TNPSC GROUP IV – POLITY MINDMAP

Exceptions to Fundamental Rights (Articles 31, 31A, 31B, 31C)

Article 31 (Right to Property)

Originally a Fundamental Right.

44th Amendment Act, 1978: Repealed as an FR and made a **legal right** under **Article 300A.**

Article 31A *(Inserted by 1st Amendment, 1951)*

Protects **five categories of laws,** mainly related to **land reforms,** from challenge under **Articles 14 & 19.**

Article 31B *(Also by 1st Amendment, 1951)*

Created the **Ninth Schedule.**

Any law placed under this Schedule is **immune from Fundamental Rights challenges.**

Article 31C *(Inserted by 25th Amendment, 1971)*

Laws made to implement **Directive Principles under Article 39(b) & 39(c)** cannot be challenged for violating **Articles 14 or 19.**



Article 33-Empowers Parliament to restrict or cancel Fundamental Rights for armed forces, police, paramilitary, and intelligence agencies to maintain discipline.



Article 34 – Allows Parliament to make laws indemnifying individuals for actions taken during martial law and restoring public order.



Article 35 – Grants exclusive power to Parliament to make laws related to Articles 16(3), 32(3), 33, and 34.



B. R. Ambedkar described which fundamental right as the 'heart and soul' of the Indian Constitution?

A. Right to Equality
B. Right to Education
C. Right to Constitutional Remedies
D. Right to Freedom

Correct Answer: C. Right to Constitutional Remedies